

HOUSE No. 2063

The Commonwealth of Massachusetts

PRESENTED BY:

Jonathan D. Zlotnik

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to corrections officer safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>1/17/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>2/7/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/10/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>2/11/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>2/19/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>2/19/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>2/19/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>2/19/2025</i>
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>3/4/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>3/20/2025</i>

HOUSE No. 2063

By Representative Zlotnik of Gardner, a petition (accompanied by bill, House, No. 2063) of Jonathan D. Zlotnik and others relative to penalties for assault and battery upon corrections officers and other Department of Correction staff. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to corrections officer safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 265 Section 13D of the General Laws is hereby amended by
2 inserting after the last paragraph, the following paragraph:

3 "Whoever commits an assault and battery upon a corrections officer, or other Department
4 of Corrections staff person when such person is engaged in the performance of their duties at the
5 time of such assault and battery and who by such assault and battery causes serious bodily injury
6 to the corrections officer, or Department of Corrections staff person shall be punished by a term
7 of imprisonment in the state prison for not less than 1 year nor more than 10 years, or house of
8 correction for not less than 1 year, nor more than 2 1/2 years. No sentence imposed pursuant to
9 this section shall be for less than a mandatory minimum term of imprisonment of 1 year and a
10 fine of not less than \$500 nor more than \$10,000 may be imposed but not in lieu of the
11 mandatory minimum term of imprisonment. A prosecution commenced under this paragraph
12 shall not be placed on file or continued without a finding and a sentence imposed upon a person

13 convicted of violating this paragraph shall not be suspended or reduced, nor shall such person be
14 eligible for probation, parole, work release, furlough or receive any deduction from the person's
15 sentence for good conduct until such person shall have served said mandatory minimum term of
16 imprisonment. For purposes of this section, the term "serious bodily injury" shall mean bodily
17 injury which results in a permanent disfigurement, protracted loss or impairment of a bodily
18 function, limb or organ or substantial risk of death."